

*Name Changed to: DOW CHEMICAL INTERNATIONAL
PRIVATE LIMITED
w.e.f. 01-11-1999

THE COMPANIES ACT, 1956

REG. NO.

COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

OF

DOW (INDIA) SYSTEMS PRIVATE LIMITED

REG. NO.
11-021103R

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CONSTITUTION

1.1 Subject as hereinafter provided, the Regulations contained in Table "A" in the First Schedule to the Companies Act, 1956 shall apply to this Company. All references herein contained to any specified Regulations of Table "A" shall be inclusive of the first and the last of Regulations referred to and in case of any conflict between the provisions herein contained and the incorporated Regulations of Table "A", the provisions herein shall prevail.

1.2 The Regulations for the management of the Company and for the observance of the members thereof shall be such as contained in these Articles subject however to the exercise of the statutory powers of the Company in respect of repeal, additions, alterations, substitution, modifications and variations thereto by Special Resolution as prescribed by the Companies Act, 1956.

INTERPRETATION

In these presents, the following words and expressions shall have the following meanings, unless excluded by the subject or context:

- (i) 'The Act' means 'The Companies Act, 1956' for the time being in force.
- (ii) 'The Board' or 'The Board of Directors' means a meeting of Directors duly called and constituted or as the case may be the Directors assembled at a Board Meeting or the requisite number of Directors entitled to pass circular resolution in accordance with these Articles.
- (iii) 'The Chairman' means the Chairman of the Board of Directors for the time being of the Company.
- (iv) 'The Company' or 'This Company' means Dow (India) Systems Private Limited.

GENERAL STAMP OFFICE
TOWN HALL, FORT,
MUMBAI - 400 023.
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- (v) 'Directors' means the Directors for the time being of the Company or as the case may be the Directors assembled at a Board Meeting and shall include Alternate Directors.
- (vi) 'Month' shall mean calendar month.
- (vii) 'The Office' means the Registered Office of the Company.
- (viii) 'Paid Up' shall include 'Credited as fully paid up'.
- (ix) 'Persons' shall include any corporation as well as individuals.
- (x) 'Proxy' includes attorney duly constituted under a Power of Attorney.
- (xi) 'These Presents' or 'Regulations' means these Articles of Association as originally framed or as altered from time to time and in force for the time being and include the Memorandum of Association where the context so requires.
- (xii) 'The Register' shall mean the Register of Members to be kept as required by Section 150 of the Act.
- (xiii) 'The Seal' means the common seal for the time being of the Company.
- (xiv) 'Section' means Section of the Act.
- (xv) 'Secretary' means a Company Secretary within the meaning of Clause (c) of sub-section (1) of Section 2 of the Companies Secretaries Act, 1980 (56 of 1980) and includes any other individual possessing the prescribed qualifications under the Companies (Appointment and Qualifications of Secretary) Rules 1988, and appointed by the Board to perform the duties which may be performed by a Secretary under the Act, and any other ministerial or administrative duties.
- (xvi) 'Shareholders' or 'Members' means the duly registered holders from time to time of the shares of the Company.
- (xvii) 'Special Resolution' shall have the meaning assigned thereto by Section 189 of the Act.
- (xviii) 'Written' or 'In writing' means written or printed or partly written and partly printed or lithographed or typewritten or reproduced by any other substitute for writing.
- (xix) 'Year' means the financial year of the Company as defined in the Act.

II

- (i) Words importing the masculine gender shall include the feminine gender and vice versa.
- (ii) Words importing the singular shall include the plural, and vice versa.

3. PRIVATE COMPANY

The Company is a private company within the meaning of Section 3(1)(iii) of the Act, and accordingly -

- 3.1 The right to transfer shares of the Company is restricted in the manner hereinafter prescribed.
- 3.2 The number of members of the Company (exclusive of persons who are in the employment of the Company and of persons who have been formerly in the employment of the Company were members of the Company while in that employment and have continued to be members after the employment ceased) is limited to fifty; provided that if two or more persons hold one or more shares in the Company jointly, they shall be for the purpose of this regulation be treated as a single member.
- 3.3 Any invitation to the public for any shares or debentures of the Company is prohibited.

4. CAPITAL

- 4.1 The Company may from time to time increase or reduce its capital and divide the shares in the original or increased capital for the time being into several classes and to attach thereto respectively such preferential, qualified or special rights, privileges or conditions as may be determined by or in accordance with the regulations of the Company and to vary, modify or abrogate any such rights, privileges or conditions in such manner as may be permitted by the Act or provided by the regulations of the Company for the time being.
- 4.2 If two or more persons are registered as joint-holders of any shares, any of such persons may give effectual receipts for any dividends or other moneys payable in respect of such shares.
- 4.3 If at any time the share capital is divided into different classes of shares, the rights attached to any class of shares (unless otherwise provided by the terms of issue of the share of that class) may, subject to the provisions of Sections 106 and 107, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class or with the sanction of Special Resolution passed at the separate meeting of the holders of the shares of that class.
- 4.4 No person shall be recognised by the Company as having any share upon trust, and the Company shall not be bound by or be compelled in any way (even when having notice thereof) to recognise any equitable, contingent, future or partial interest in any share (except only as by these presents otherwise expressly provided) or any right whatsoever in respect of any share other than an absolute right to the entirety thereof of the registered shareholder.

5. GENERAL AUTHORITY

5.1 Wherever in the Act it has been provided that the Company shall have any right, privilege or authority or that the Company could carry out any transaction only if the Company is so authorised by its Articles, then and in that case by virtue of this Regulation the Company is hereby specifically authorised, empowered and entitled to have such right, privilege or authority, to carry out such transactions as have been permitted by the Act without there being any separate Regulations in that behalf herein provided without limiting the general authorities confirmed under this Article, the company shall have the following rights privileges, authorities to carry out the transactions as set out below under the relevant Sections:

- S76 To pay commission on issue of Shares & Debentures
- S80 To issue redeemable, cumulative Preference Shares.
- S92 To accept unpaid share capital although not called up.
- S93 To pay dividend in proportion to amount paid-up.
- S94 To alter the share capital of the Company.
- S100 To reduce the share capital of the Company.
- S106 To alter the rights of shareholders.
- S208 To pay interest out of capital.
- S265 To adopt proportional representation for the appointment of directors.
- S313 To appoint Alternate Directors.

5.2 The Company shall have a first and paramount lien upon all the shares (whether fully paid or not) registered in the name of any member (whether solely or jointly with others) and upon the proceeds of sale thereof for his debts, liabilities and engagements (whether presently payable or not), solely or jointly with any other persons to or with the Company, whether the period for the payment, fulfillment, or discharge thereof shall have actually arrived or not. And such lien shall extend to all dividends from time to time declared in respect of such shares. The Board of Directors may at any time declare any share to be wholly or in part exempt from the provisions of this clause.

6. FURTHER ISSUE OF CAPITAL TO BE OFFERED TO EXISTING MEMBERS

Where the Board decides to increase the subscribed Capital of the Company by the issue of further shares, then subject to any direction to contrary that may be given by a Special Resolution in General Meeting and subject only to those directions sanctioning the increase of the share capital, all new shares shall before issue, be offered to such persons as at the date of the offer are entitled to receive notices from the Company of general meeting in proportion, as nearly as the circumstances permit, to the number of the existing shares in respect of which they are registered as the holders on the Register. The offer shall be made by a notice specifying the number of shares offered, and limiting a time (being not less than thirty days from the date of the posting of the offer) within which the offer, if not accepted, will be deemed to have been declined. After expiration of that time, or on the receipt of an intimation from the person to whom the offer

is made that he declines to accept the shares offered, the Board may dispose of the same in such manner as it thinks most beneficial to the Company.

7. FORFEITURE OF SHARES

- 7.1 If any member fails to pay any call or instalment of a call on or before the day appointed for the payment of the same or any such extension thereof as aforesaid, the Board may, at any time thereafter, during such time as the call or instalment remains unpaid, give notice to him requiring him to pay the same together with any interest that may have accrued thereon at such rate as the Board may determine, and all expenses that may have been incurred by the Company by reason of such non-payment.
- 7.2 The notice aforesaid shall name a day (not being less than thirty days from the date of service of the notice) and a place or places on and at which such call or instalments and such interest thereon, as the Board may determine from the day on which such call or instalment ought to have been paid and expenses as aforesaid are to be paid. The notice shall also state that in the event of the non-payment before the time at the place appointed, the shares in respect of which the call was made or instalment is payable will be liable to be forfeited.
- 7.3 If the requirements of such notice as aforesaid shall not be complied with, every or any share in respect of which such notice has been given may at any time thereafter before payment of all calls or instalments, interest and expenses due in respect thereof be forfeited by a resolution of the Board to that effect. Subject to the provisions of Section 205A of the Act, such forfeiture shall include all dividends declared or any other moneys payable in respect of the forfeited share and not actually paid before the forfeiture. Neither the receipt by the Company of a portion of any money which shall, from time to time, be due from any member to the Company in respect of his shares, either by way of principal or interest, nor any indulgence granted by the Company in respect of the payment of any such money, shall preclude the Company from thereafter proceeding to enforce a forfeiture of such shares as herein provided.
- 7.4 When any share shall have been so forfeited, notice of the forfeiture shall be given to the member in whose name it stood immediately prior to the forfeiture, and an entry of the forfeiture, with the date thereof, shall forthwith be made in the Register of Members, but no forfeiture shall be in any manner invalidated by any omission or neglect to give such notice or to make any such entry as aforesaid.
- 7.5 Any share so forfeited shall be deemed to be the property of the Company, and may be sold, re-allotted, or otherwise disposed of either to the original holder thereof or to any other person, upon such terms and in manner as the Board shall think fit.
- 7.6 The Board may at any time before any share so forfeited shall have been sold, re-allotted or otherwise disposed of, annul the forfeiture thereof upon such conditions as it thinks fit.

- 7.7 Any member whose shares have been forfeited shall cease to be a member in respect of the forfeited shares but shall, notwithstanding the forfeiture, be liable to pay and shall forthwith pay to the Company on demand all calls, instalments, interest and expenses owing upon or in respect of such shares at the time of the forfeiture together with interest thereon from the time of forfeiture until payment, at such rate as the Board may determine and the Board may enforce the payment thereof, if it thinks fit.
- 7.8 The liability of such person shall cease if and when the Company shall have received payment in full of all such money in respect of his shares.
- 7.9 The forfeiture of a share shall involve extinction, at the time of the forfeiture, of all interest in and all claims and demands against the Company, in respect of the share and all other rights incidental to the share, except only such of those rights as by these Articles are expressly saved.
- 7.10 A declaration in writing that the declarant is a Director or Secretary of the Company and that a share in the Company has been duly forfeited in accordance with the Articles on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the shares.
- 7.11 The Company may receive the consideration, if any, given for the share, on any sale or disposal thereof and execute a transfer of the share in favour of the person to whom the share is sold or disposed of.
- 7.12 The transferee shall thereupon be registered as the holder of the share.
- 7.13 The transferee shall not be bound to see to the application of the purchase money, if any, nor his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the forfeiture, sale or disposal of the share.
- 7.14 The provisions of these regulations as to forfeiture shall apply in the case of non-payment of any sum which, by the terms of issue of a share, become payable at a fixed time, whether on account of the nominal value of the share or by way of premium as if the same had been payable by virtue of a call duly made and notified.
- 7.15 Upon any sale after forfeiture or for enforcing a lien in purported exercise of the powers hereinbefore given, the Board may appoint some person to execute an instrument of transfer of the shares sold and cause the purchaser's name to be entered in the Register in respect of the shares sold, and the purchaser shall not be bound to see the regularity of the proceedings, or to the application of the purchase money, and after his name has been entered in the Register in respect of such shares, the validity of sale shall not be impeached by any person and the remedy of

any person aggrieved by the sale shall be in damages only and against the Company exclusively.

- 7.16 Upon any sale, re-allotment or other disposal under the provisions of the preceding Articles, the certificate or certificates originally issued in respect of the relative shares shall (unless the same shall on demand by the Company have been previously surrendered to it by the defaulting member) stand cancelled and become null and void and of no effect, and the Directors shall be entitled to issue a new certificate or certificates in respect of the said shares to the person or persons entitled thereto.

8. TRANSFER AND TRANSMISSION OF SHARES

- 8.1 No member of the Company shall transfer his shares to any person, without the written consent of the Board.
- 8.2 The instrument of transfer of any share in a company shall be executed by or on behalf of both the transferor and transferee.
- 8.3 The transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof.
- 8.4 Subject to the provisions of the Act, the shares in the Company shall be transferred in the form prescribed in the Act.
- 8.5 The Board may, subject to the right of appeal conferred by the Act, decline to register -
- (a) the transfer of a share, not being a fully paid share, to a person of whom they do not approve of.
 - (b) any transfer of shares on which the Company has a lien.
- 8.6 The Board may also decline to recognise any instrument of transfer unless a fee of Rs. 10/- (Rupees ten only) is paid to the Company in respect thereof; and the instrument of transfer is accompanied by the certificate of the shares to which it relates, and such other evidence as the Board may reasonably require to show the right of the transferor to make the transfer; and the instrument of transfer is in respect of only one class of shares.
- 8.7 Subject to the provisions of Section 154, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine.

Provided that such registration shall not be suspended for more than thirty days at one time or for more than forty five days in the aggregate in any year.

8.8 The Company shall be entitled to charge a fee not exceeding Rs 10/- (Rupees ten only) as permitted on the registration of every probate, letters of administration, certificate of death or marriage, power of attorney or other instrument.

8.9 On the death of the member, the survivor or survivors where the member was a joint holder, and his legal representatives where he was a sole holder, shall be recognised by the Company as having title to his interest in the shares.

Nothing stated above shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with any other persons.

8.10 Any person becoming entitled to a share in consequence of the death or insolvency of a member may, upon such evidence being produced from time to time properly be required by the Board and subject as hereinafter provided, elect, either

- (a) to be registered himself as holder of the share ;or
- (b) to make such transfer of the share as the deceased or insolvent member could have made.

The Board shall in either case, have the right to decline or suspend registration as it would have had, if the deceased or insolvent member had transferred before his death or insolvency.

8.11 If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the Company a notice in writing signed by him stating that he so elects.

If the person aforesaid shall elect to transfer the share, he shall testify his election by executing the transfer of the share.

All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice or transfer were a transfer signed by that member.

8.12 A person becoming entitled to a share by reason of death or insolvency of the shareholder, shall be entitled to the same dividends and other advantages to which he would be entitled as if he were registered holder of the share except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the Company.

Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the shares, and if the notice is not complied with within ninety days, the board may

thereafter withhold payment of all dividend, bonuses or moneys payable in respect of shares, until the requirement of the notice be complied with.

9. LIEN ON SHARES

The shareholders shall not pledge the shares owned by them in the Company except with the prior consent of the Board of Directors.

10. DIRECTORS

10.1 The first Directors of the Company are:

1. Mr. Peter Howell Davies
2. Mr. Peter Mackey
3. Mr. Vipul Shah
4. Mr. Bharat D. Vasani

10.2 Until otherwise decided by General Meeting the number of Directors shall be not less than two and not more than twelve.

10.3 Subject to the provision of the Act, all Directors shall be appointed by the shareholders of the Company in General Meeting.

10.4 No share qualification shall be necessary for any Director.

10.5 The Board of Directors may appoint an Alternate Director to act for a Director during his absence for the period of not less than three months from the state in which meetings of the Board are ordinarily held. Such Alternate Director shall be a person nominated by the original member of the Board of Directors in whose place he is appointed.

10.6 Subject to the provisions of these Articles, the Board may, by a resolution, vest in the Managing Director such of the powers vested in the Board generally as it thinks fit and such powers may be exercisable upon such conditions and restrictions as the Board may think fit.

10.7 A Directors of the Company may resign from the Board of Directors by giving thirty (30) days prior notice in writing to the Board of Directors of the Company.

10.8 The Directors of the Company are obliged to present to the Board of Directors for consideration all business opportunities which could be beneficial to and in the interest of the Company.

11. PROCEEDINGS OF THE BOARD OF DIRECTORS

11.1 The quorum for all meetings of the Board of Directors shall be governed by provisions of the Act.

- 11.2 All matters shall be considered as approved by the Board of Directors if adopted by the affirmative vote of a majority of the Directors present.
- 11.3 The Board of Directors may meet for the despatch of business, adjourn and otherwise regulate its meetings, as it thinks fit.
- 11.4 A Director may, or Secretary on the requisition of a Director shall, at any time, summon a meeting of the Board.
- 11.5 Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes.
- 11.6 In case of an equality of votes, the Chairman of the Board shall have a second or casting vote.
- 11.7 The continuing Directors may act notwithstanding any vacancy in the Board but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing Directors or Director may act for the purpose of increasing the number of Directors to that fixed for the quorum, or of summoning a general meeting of the Company, but for no other purpose.
- 11.8 Subject to the provisions of the Act, no resolution shall be deemed to have been passed by the Board of the Company by circulation, unless the resolution has been circulated in draft, together with the necessary papers, if any, to all Directors in India and has been approved by all such Directors or by a majority of such of them, as are entitled to vote on the resolution.
- 11.9 If at any meeting the Chairman is not present within fifteen minutes after the time appointed for holding the meeting, the Deputy Chairman shall be the Chairman of the meeting. If both the Chairman and the Deputy Chairman are not present, then the Directors present may choose one of the Directors to be the Chairman of the meeting.
- 11.10 The Board may, subject to the provisions of the Act delegate any of its powers to committees consisting of such member or members of its body as it thinks fit.
- 11.11 Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.
- 11.12 A committee may elect a Chairman of its meetings.
- 11.13 A committee may meet and adjourn as it thinks proper.
- 11.14 Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present, and in case of an equality of votes, the Chairman shall have a second or casting vote.

- 11.15 All acts done by any meeting of the Board or of a committee thereof or by any person acting as a Director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such Directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such Director or such person had been duly appointed and was qualified to be a Director.
- 11.16 Save as otherwise expressly provided in the Act, a resolution in writing, signed by all the members of the Board or of a committee thereof, for the time being entitled to receive notice of a meeting of the Board or committee, shall be as valid and effectual as it had been passed at a meeting of the Board or committee, duly convened and held.

12. REMUNERATION OF DIRECTORS

- 12.1 The Remuneration of each Director shall be at such rate for each meeting of the Board or committee of the Board attended by him as the Board may, from time to time, determine. If any Director being willing, shall be called upon to perform extra services or special exertions or efforts (which expression shall include work done by a Director as member of any committee formed by the Directors) or to travel on the Company's business the Board may arrange with such Director for such special remuneration for such extra services or special exertions or efforts either by way of a daily allowance or payment of a lumpsum amount or otherwise.
- 12.2 The Board may from time to time fix the remuneration to be paid to a Director in respect of the work done or services rendered.

13. GENERAL POWERS OF THE BOARD

The Board of Directors shall be entitled to exercise all such powers and to do all such acts and things as the Company is authorised to exercise and do, provided that the Board shall not exercise any power or do any act or thing, which is directed or required by the Act or any other provisions of law or by the Memorandum of Association of the Company or by these Articles to be exercised or done by the Company in General Meeting.

14. GENERAL MEETING

- 14.1 All General Meetings, other than Annual General Meetings shall be called Extraordinary General Meetings.
- 14.2 The Board may, whenever it thinks fit, call an Extraordinary General Meeting.
- 14.3 No business shall be transacted at any General Meeting unless a quorum of members is present at the time when the meeting proceeds to business.

- 14.4 Save as herein otherwise provided, the quorum for the General Meeting shall be as prescribed under Section 174 of the Act.
- 14.5 The Chairman of the Board shall preside as Chairman at every General Meeting of the Company.
- 14.6 If no such Chairman is elected, or if he is not present within fifteen minutes after the time appointed for holding the meeting, the Board shall elect one of their number to be Chairman of the meeting.
- 14.7 The Chairman may, with the consent of any meeting at which a quorum is present, and shall, if so directed by the meeting, adjourn the meeting from time to time.
- 14.8 No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting at which the adjournment took place.
- 14.9 When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.
- 14.10 Save as aforesaid, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.
- 14.11 In the case of an equality of votes, whether on a show of hands or on a poll, the Chairman of the meeting at which the show of hands takes place, or at which the poll is demanded, shall be entitled to a second or casting vote.

15. DEMAND FOR POLL

A poll may be demanded by any member in accordance with the provision of Section 179 of the Act and shall be conducted in accordance with the provisions of Sections 180, 181, 182, 183 and 184 of the Act. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.

16. DIVIDENDS AND RESERVES

- 16.1 The profits of the Company shall be divisible subject to these Articles among the members in proportion to the amount of capital paid up on the shares in respect of which they are registered as the holders thereof on the Register of Members.
- 16.2 The Board of Directors of the Company shall have authority to recommend the amounts, timing and currency of payment of any dividend or other distribution to be made by the Company.
- 16.3 The Company may, at an Annual General Meeting, declare a dividend to be paid to the members according to their rights and interest in the profits and may fix the time for payments not exceeding forty two days from the

declaration thereof but no dividend shall exceed the amount recommended by the Board.

16.4 The Company in General Meeting may, upon the recommendation of the Board, resolve to capitalise any part of the amount for the time being standing to the credit of any of the Company's reserve accounts, share premium account or to the credit of the Profit and Loss Account, or otherwise available for distribution as bonus shares.

16.5 The sum aforesaid shall not be paid in cash but shall be applied either in or towards:-

(i) paying up any amounts for the time being unpaid on any shares held by such members respectively.

(ii) paying up in full, unissued shares of the Company to be allotted and distributed, credited as fully paid up, to and amongst such members in the proportions aforesaid, or

(iii) partly in the way specified in sub-clause (i) and partly in that specified in sub-clause (ii).

16.6 The Board shall give effect to the resolution passed by the Company in pursuance of this regulation.

16.7 The Board of Directors may from time to time pay to the members such interim Dividend as appears to be justified by the profits of the Company

17. AUDITORS

17.1 The first Auditors of the Company shall be appointed by the Board within one month of incorporation of the Company.

17.2 The Company shall, at each Annual General Meeting, appoint an Auditor or Auditors to hold office until the next Annual General Meeting.

17.3 The Auditors shall be appointed and their duties regulated in accordance with the relevant provisions of the Act.

18. THE SEAL

18.1 The Board shall provide for the safe custody of the seal.

18.2 The seal of the Company shall not be affixed to any instrument except in the presence of one Director. The authorised Director shall sign every instrument to which the seal of the Company is so affixed in his presence. The seal of the Company may be used outside India.

19. WINDING UP

- 19.1 In the event of winding up, of the Company, the liquidator may, with the sanction of a Special Resolution of the Company and any other sanction required under the Act, divide amongst members, in specie or kind the whole or any part of the assets of the Company, whether they shall consist of property of the same kind or not.
- 19.2 For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how much division shall be carried out as between the members or different classes of members.

20. INDEMNITY

Subject to the provisions of Section 201 of the Act and so far as such provisions permit, every Director, Manager, Secretary, Auditor and other Officer or servant of the Company shall be indemnified by the Company against any claims on respect of matters which arise from acts or omissions of the relevant person in the ordinary course of discharging his authorised duties, and shall not be liable for the acts, receipts, neglects, or defaults of any other Director or Officer or for joining in any receipt or other act for conformity, or for any loss or expenses happening to the Company through the insufficiency or deficiency of title to any property acquired by order of the Directors for or on behalf of the Company, or for insufficiency or deficiency of any security in or upon which any of the money of the Company shall be invested or for any loss or damage arising from the bankruptcy, insolvency or a tortious act of any person with whom any moneys, securities or effects shall be deposited or for any loss occasioned by any error of judgement, omission or oversight on his part or for any other loss, damage or misfortune whatever shall happen in the execution of the duties of his office or in relation thereto, unless the same happen through his own negligence or dishonesty, and it shall be the duty of the Directors, out of the funds, of the Company to pay, all costs, losses and expenses which any such person may incur or become liable to by reason of any contract entered into or act or thing done by him as Director, Officer, Auditor or servant or in any way in the discharge of his duties including travelling expenses, and the amount for which indemnity is provided shall immediately attach as a lien on the property of the Company and have priority as between the members over all other claims.

21. SECRECY

- 21.1 Every Director, Auditor, Executor, Trustee, member of the Committee, Officer, Servant, Agent, Accountant or other person employed in the business of the Company shall be deemed to have pledged himself to observe a strict secrecy in respect of all transactions of the Company with its customers and the state of the accounts with individuals in matters relating thereto and shall be deemed to have pledged not to reveal any of the matters which come to his knowledge in the discharge of his duties except when required to do so by the Directors or by a Court of Law as the case may be and except so far as may be necessary in order to comply with any of the provisions in this presents contained.

- 21.2 No member, not being a Director shall be entitled except to the extent expressly permitted by the Act or these Articles to enter upon the property of the Company or to require discovery of or any information respecting any detail of the Company's trading or any matter which is or may be in the nature of a trade secret, mystery of trade or secret process which may relate to the conduct of the business of the Company and which, in the opinion of the Board, it will be expedient in the interest of the members of the Company to communicate to the public.

22. INSPECTION

The Directors shall from time to time determine whether and to what extent and at what time and place and under what conditions or regulations, the accounts, books and documents of the Company or any of them shall be open to the inspection of the members and no member (not being a Director) shall have any right to inspect any account or book or documents of the Company except as conferred by statute or authorised by the Directors or by a resolution of the Company in General Meeting. The Books, Registers, and other documents required to be maintained by the Company and kept open for inspection under the provisions of the Act, shall be available for inspection at the Registered Office of the Company by the persons entitled thereto to the extent and in the manner and on payment of the requisite fees, if any, specified in the aforesaid provisions, between the hours of 10:00 am and 12:00 noon on each business day in India or between such other hours or such other time as the Directors may from time to time determine. Provided, however, that the Registers required to be maintained under the provisions of Section 307 of the Act shall be open for inspection of the members and holders of debentures of the Company between the above mentioned hours only during the period prescribed under Section 307 of the Act.

We the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of the Articles of Association. *Shah*

Name address, description and occupation of each subscriber	Signature of subscriber	Signature, name, description and occupation of witness
1. VIPUL SHAH S/O SHANTILAL T. SHAH ADD: 69/A, JAIBHARAT SEC. "HARSHIL", 2ND FLOOR 3RD ROAD, KHAR (W) MUMBAI - 400052 OCCUPATION: SERVICE	<i>Vipul Shah</i>	<i>V. Shetkar</i> <i>Vijay Kumar</i> <i>S/O Swaminathan</i> <i>9/121 5th (E), Ghansoli - 22</i> <i>Company Law Consultant</i>
2. BHARAT VASANI S/O. DAMODAR H. VASANI Address: B-43, FLOWER BLOOM, VEERA DESAI ROAD, ANDHERI (WEST) MUMBAI - 400058 Occupation: SERVICE	<i>Bharat Vasani</i>	<i>Rishabh & Son</i>

Dated: 6.2.1998

Place: Mumbai